

Court No. - 3

Case :- WRIT - C No. - 3140 of 2024

Petitioner :- Sukrish Kumar Trivedi

Respondent :- State Of U.P. Thru. Prin. Secy. (Energy),
Civil Sectt. Lko. And Others

Counsel for Petitioner :- Manoj Kumar Gupta, Narendra
Kumar, Praveen Kumar Gupta

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Brij Raj Singh, J.

(1) Heard the learned counsel for the petitioner and the learned Standing counsel who appears for the Opposite party nos.1, 4 & 5 and Ms. Aprajita Bansal, who appears for the Opposite party no.2 & 3.

(2) This petition has been filed by the petitioner for the following main prayer:-

"1) Issue an order or writ in the nature of Certiorari thereby aside/ quash the Recovery Certificate (R.C. Document-36) [See Rule 141(3)] Demand Notice dated 19.12.2023 issued by Opposite party no.5, which is being annexed as Annexure No.1 to this writ petition."

(3) It has been submitted by the learned counsel for the petitioner that the petitioner has been issued the Recovery Citation by the Tehsildar, on the basis of Recovery Certificate issued by the Opposite party no.3. The petitioner had certain electricity dues which he could not pay and the outstanding amount reached Rs.3.18 lacs. His property was seized by an order dated 25.07.2002 by the Opposite party no.3 but it was not sold off as the petitioner paid the amount, however, the electricity was disconnected.

(4) Now the Recovery Certificate has been issued of Rs.11,92,569.57.

(5) It has been submitted that the Demand Notice has been incorrectly issued to him as there is no electricity connection in his property.

(6) Learned counsel appearing on behalf of the Opposite

party nos.2 and 3 has pointed out from Page no.39 of the paper book which is annexed as Annexure No.6 to the writ petition, which shows a bill having been issued lastly in March, 2013 showing dues of Rs.11,92,569.57. The petitioner continued to enjoy electricity.

(7) It has been submitted by the learned counsel appearing on behalf of the Opposite party nos.2 and 3 that the petitioner has remedy of approaching the Opposite party no.2 under Paragraph 6.5 of the Electricity Supply Code.

(8) This writ petition is finally ***disposed of*** with a direction to the petitioner to move an appropriate application under Paragraph 6.5 of the Electricity Supply Code to the Executive Engineer, Madhyanchal Vidyut Vitran Nigam Limited, Electricity Distribution Cess-III, Lucknow, U.P., **within a period of two weeks**. If such application is made, the same shall be considered in accordance with the provisions of the Rules and appropriate orders be passed therein, **within a period of eight weeks' thereafter**.

(9) **For a period of ten weeks or till the decision is taken on the application of the petitioner whichever is earlier**, no coercive steps be taken in pursuance of recovery notice issued by the Opposite party no.3.

Order Date :- 5.4.2024
N.PAL